

25STCV03822 25STCV03822

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-09-23

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Case Number: 25STCV03822 Hearing Date: September 23, 2026 Dept: 509

William Robidoux v. Single Room Occupancy Housing Corporation

MOTION TO DISMISS

MOVING PARTY: Defendant Single Room Occupancy Housing Corporation

RESPONDING PARTY(S): Unopposed

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a breach of habitability case. Plaintiff William Robidoux (Plaintiff) lives at a property owned and managed by defendant Single Room Occupancy Housing Corporation (Defendant). Plaintiff alleges his rental unit contains habitability defects, including plumbing defects, mold, and vermin infestation, among other things. Despite notice, Defendant has allegedly failed to remedy these issues.

On April 14, 2026, Plaintiff's counsel, Daniel J. Lavi, Esq., was relieved as counsel. Plaintiff is currently representing himself.

Defendant now moves to dismiss for failure to comply with the Court's orders. No opposition was filed. Defendant filed a notice of non-opposition.

TENTATIVE RULING:

Assuming proper service on Plaintiff, as discussed infra, Defendant's Motion to Dismiss is GRANTED.

This matter is ordered DISMISSED WITH PREJUDICE.

Defendant is ordered to give notice.

DISCUSSION:

Motion to Dismiss

I. Legal Standard

The Court has the authority to impose sanctions against a party that engages in the misuse of the discovery process. (Code Civ. Pro. § 2023.030.) Misuse of the discovery process includes disobeying a court order to provide discovery. (Code Civ. Pro. §§ 2023.010(g).) A party engaging in this conduct may be subject to sanctions including monetary, issue, evidence, or terminating sanctions. (Code Civ. Pro. § 2023.030(a)-(d).)¿¿

The Court must “tailor the sanction to the harm caused by the withheld discovery.” (Collisson & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1618-1619.)¿ “[C]ontinuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992.)

In deciding whether to impose a terminating sanction, the trial court is to consider the totality of the circumstances: the “conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

II. Analysis

Defendant now moves this Court to impose a terminating sanction against Plaintiff requesting a dismissal of this action.

A. Issue of Service

As an initial matter, Defendant’s proof of service appears defective. Defendant served:

William Robidoux

310 East 5th Street, Unit 45

Los Angeles CA 90013

Telephone: 213-636-2964

In Pro Per, WILLIAM ROBIDOUX

(Mot. at p. 15/16.)

However, Defendant attested to “ELECTRONIC MAIL SERVICE: Only by e-mailing the document(s) from my email address (jgossett@veatchfirm.com) to the persons at the e-mail address(es) listed.” (Mot. at p. 14/16.) There is no email address provided in the proof of service. (Mot. at p. 15/16.) Therefore, the proof of service is insufficient.

At the hearing, Defendant must demonstrate that Plaintiff was properly served with this motion on August 26, 2026. If it cannot, the hearing will be continued to allow proper service.

B. The Merits of the Motion

On October 10, 2025, Defendant propounded Special Interrogatories, Set One, Request for Production of Documents, Set One and Request for Admissions, Set One. (Levine Decl. ¶12.) On December 12, 2025, Plaintiff served unverified identical responses, consisting of boilerplate objections. (Levine Decl. ¶13.) On June 2, 2026, Defendant filed Motions to Compel Further Responses as to all discovery served on Plaintiff. (Levine Decl. ¶15.) On July 1, 2026, the Court granted Defendant's motions and Plaintiff was ordered to serve Code-compliant responses without objection within 30 days. (Levine Decl. ¶16; 7/1/26 Minute Order.) The Court imposed monetary sanctions of \$2,370 on Plaintiff, personally, payable to Defendant within 30 days. (Levine Decl. ¶16; 7/1/26 Minute Order.)

To date, Plaintiff has not served further responses, and Plaintiff has not complied with the Court order. (Levine Decl. ¶17.)

Here, based on Plaintiff's failure to respond to discovery in violation of court orders and the failure of Plaintiff to oppose this motion, Plaintiff has apparently abandoned his action. If nothing else, the continued misuse of the discovery process evidences Plaintiff's willful indifference to this Court's orders. Considering the totality of the circumstances here, including that lesser monetary sanctions have been insufficient to encourage compliance, terminating sanctions are appropriate and warranted.

Finally, this Court declines to award any further monetary sanctions against Plaintiff given that a terminating sanction is a just and adequate remedy under the circumstances. Therefore, any and all requests for monetary sanctions are DENIED. However, those monetary sanctions already awarded in this matter remain enforceable to the extent they have not been paid.

Accordingly, Defendant's Motion to Dismiss is GRANTED.

IT IS SO ORDERED.

Dated: September 23, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part